

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JAIME VELEZ a/k/a JAMIE VALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE JABBAR BRIDE,
NYPD DETECTIVE JOSEPH PINDER,
NYPD UNDERCOVER OFFICER UC 5066 and
NYPD LT. COMMANDER SEAN DONOVAN,

Defendants.

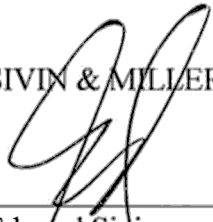
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 26, 2018

SIVIN & MILLER, LLP

By 

Edward Sivvin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK,

c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD DETECTIVE JABBAR BRIDE,

c/o NYPD Detective Bureau, One Police Plaza, New York, NY 10038

NYPD DETECTIVE JOSEPH PINDER,

c/o NYPD Detective Bureau, One Police Plaza, New York, NY 10038

NYPD UNDERCOVER OFFICER UC 5066,

c/o NYPD Legal, One Police Plaza, New York, NY 10038

NYPD LT. COMMANDER SEAN DONOVAN,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JAIME VELEZ a/k/a JAMIE VALEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE JABBAR BRIDE,
NYPD DETECTIVE JOSEPH PINDER,
NYPD UNDERCOVER OFFICER UC 5066 and
NYPD LT. COMMANDER SEAN DONOVAN,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD DETECTIVE JABBAR BRIDE (hereinafter "Bride") was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Bride was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Bride was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD DETECTIVE JOSEPH PINDER (hereinafter "Pinder") was and is a police detective employed by the NYPD.

9. That at all times herein mentioned, Pinder was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Pinter was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD UNDERCOVER OFFICER UC 5066 (hereinafter "UC") was and is a police officer employed by the NYPD.

12. That at all times herein mentioned, UC was acting within the course and scope of UC'S employment with the NYPD.

13. That at all times herein mentioned, UC was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD LT. COMMANDER SEAN DONOVAN (hereinafter "Donovan") was and is a police lieutenant commander employed by the NYPD.

15. That at all times herein mentioned, Donovan was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Donovan was acting under color of state law.

THE FACTS

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That on or about March 24, 2017, in the County of Kings, City and State of New York, Bride and Pinder forcibly detained, arrested, and imprisoned plaintiff without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime or criminal violation.

19. That following plaintiff's arrest, Bride and Pinder caused plaintiff to be imprisoned at various locations for a period of approximately three months, again without a warrant or without probable cause to believe that plaintiff had committed or was about to commit any crime or criminal violation.

20. That on or about March 24, 2017, defendants herein commenced and/or caused to be commenced a criminal prosecution of plaintiff, in which plaintiff was charged with various crimes of which he was innocent and of which defendants herein knew plaintiff to be innocent.

21. That on March 24, 2017, in support of the aforementioned criminal prosecution, Bride executed a sworn accusatory instrument in which he made accusations against plaintiff that were false and that he knew to be false.

22. That in support of the aforementioned criminal prosecution, Bride, Pinder, and UC fabricated evidence and made statements to fellow law enforcement officers, to the Office of the District Attorney, and to a Grand Jury, that were false and that Bride, Pinder, and UC knew to be false.

23. That among the fabricated evidence and false statements made by Bride, Pinder, and UC were that plaintiff engaged in and was observed by UC engaging in an illegal drug transaction with UC.

24. That in support of the aforementioned criminal prosecution, Bride, Pinder, and UC also withheld exculpatory evidence.

25. That the fabricated evidence and false statements made by Bride, Pinder, and UC constituted evidence material in the prosecution of plaintiff, and evidence likely to convince a judge and/or jury of plaintiff's guilt.

26. That as a result of the actions of defendants, plaintiff was incarcerated for a period of approximately three months, was deprived of his liberty and travel, was required to post bail, and was required to make numerous court appearances in defense of criminal charges brought against him.

27. That on or about July 27, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

28. That at all times herein mentioned, Donovan supervised and approved the actions of his co-defendants herein.

29. That at all times herein mentioned, each of the officers observed and/or had knowledge of the illegal and unconstitutional conduct of his or her fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

30. That upon information and belief, prior to the events alleged herein, Bride, Pinder, UC, and Donovan (hereinafter "the officers") had engaged in improper and unconstitutional conduct that led to the false arrest and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

31. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that the officers had engaged in improper and unconstitutional conduct that led to the false arrest and malicious prosecution of other individuals, and had otherwise abused

their authority against individuals while in the course and scope of their employment with the NYPD.

32. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that the officers were unfit to act as police officers.

33. That despite the City's and the NYPD's prior knowledge of the officers' unfitness and propensities, the City and the NYPD knowingly retained these officers and failed to take necessary remedial measures, thereby subjecting plaintiff to these officers' improper, illegal, and unconstitutional conduct.

34. That defendants' actions were intentional, malicious, and without excuse or justification.

35. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

36. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/False Imprisonment Under State Law)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of Bride, Pinder, UC, and Donovan constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: False Arrest/False Imprisonment)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned actions of Bride, Pinder, UC, and Donovan in falsely arresting and falsely imprisoning plaintiff constituted unlawful seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under State Law)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of Bride, Pinder, UC, and Donovan in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Malicious Prosecution)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforementioned actions of Bride, Pinder, UC, and Donovan in prosecuting plaintiff and/or causing plaintiff to be prosecuted without probable cause and for crimes of which the officers knew plaintiff to be innocent and with charges on which the officers knew the

prosecution likely would not succeed constituted a malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the aforesaid actions by Bride, Pinder, UC, and Donovan in fabricating evidence, conveying false information and accusations about plaintiff, and withholding exculpatory evidence and/or in causing and/or allowing their fellow officers to do so constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That as a result of the deliberate failure of the officers to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against the officers under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, and Retention)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of the officers.

EIGHTH CAUSE OF ACTION AGAINST THE CITY

(Monell Claim: Deliberate Indifference)

51. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

52. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by the officers involving violations of the constitutional rights of citizens of the State of New York.

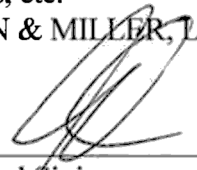
53. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42

U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
December 26, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

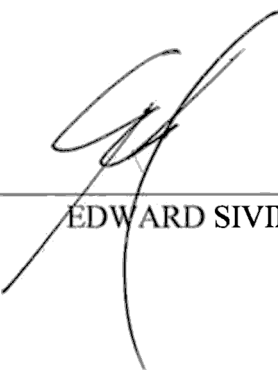
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
December 26, 2018



EDWARD SIVIN

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JAIME VELEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

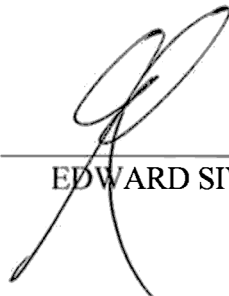
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
December 26, 2018